

REPUBLIC OF KENYA



OBOMOCARE
COMMUNITY BASED ORGANISATION
CONSTITUTION

PREAMBLE

OBOMOCARE was established in 2020 by members of the Gusii community who witnessed at close range the compounding hardships facing the most vulnerable households in Kisii and Nyamira Counties. The elderly, the chronically ill, persons living with disabilities, and households headed by orphaned children were living without food, without transport to health facilities, without personal care, and without companionship, not because of a single failing but because of several interconnected deprivations that no available system was addressing together.

In the Gusii language, the word obomo speaks of nurturing warmth, the sustaining care that a parent gives a child. OBOMOCARE takes its name from this word and its mission from this value. The Organization was built on the conviction that every elderly person, every person living with illness or disability, and every household caught in poverty deserves dignified, practical, and integrated support as a matter of right and not charity.

By 2025, OBOMOCARE had served over one thousand families across the Gusii Region through food support, transport facilitation, personal care, and companionship, operating entirely on community-generated resources. This Constitution now formalizes the governance, financial accountability, program principles, and membership structures that will guide the organization as it grows.

We, the founding members and all those who shall thereafter join OBOMOCARE Community Based organization, united by a shared conviction that every person deserves to be cared for with dignity, do hereby adopt this Constitution as the supreme governing instrument of OBOMOCARE Community Based organization.

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CHAPTER ONE: INTERPRETATION AND DEFINITIONS

Article 1. Definitions

1. In this Constitution, unless the context otherwise requires, the following definitions shall apply:

"OBOMOCARE" means a name derived from the Gusii language, combining obomo meaning nurturing warmth or care, with the concept of care for others. The name embodies the Gusii values of obwanchani meaning unity and togetherness, and omoiseke meaning dignity, and expresses the Organizations' dual commitment to practical service and communal solidarity.

"The organization" means OBOMOCARE Community Based organization, registered under the laws of Kenya.

"The Constitution" means this document, together with all schedules and amendments duly adopted in accordance with this Constitution.

"Member" means any individual admitted as a member of the organization in accordance with the provisions of this Constitution and whose membership is in good standing.

"Founding Members" means the persons who established the organization, attended the inaugural General Assembly, and whose names are recorded in the First Schedule to this Constitution.

"General Assembly" means the supreme decision-making organ of the organization, comprising all registered members in good standing, convened in accordance with Article 16.

"Board of Trustees" means the governing body of the organization elected by the General Assembly, responsible for strategic direction, oversight, and accountability.

"Executive Committee" means the day-to-day management committee of the organization comprising the Chairperson, Vice Chairperson, Secretary, Assistant Secretary, Treasurer, Assistant Treasurer, Programs Officer, Volunteer Coordinator, and Community Liaison Officer.

"Program Director" means the chief executive officer of the organization, appointed by the Board of Trustees, responsible for implementing the organizations' programs and managing day-to-day operations.

"Beneficiary" means any person or household registered by the organization to receive its services in accordance with the beneficiary criteria approved by the Board of Trustees.

"Volunteer Caregiver" means a community member trained and deployed by the organization to deliver personal care, food support, transport coordination or companionship services to beneficiaries.

"Community Health Volunteer or CHV" means a person designated under Kenya's Community Health Policy 2020 to 2030 as a first-level health worker responsible for household visits, health promotion and referrals within a defined community.

"Boda Boda" means a motorcycle taxi, which is the principal mode of affordable transport available to beneficiaries in rural Gusii for accessing health facilities and essential services.

"Harambee" means a communal self-help fundraising event, drawing on Kenya's tradition of collective community action, through which members of the community pool resources for a shared purpose.

"Financial Year" means the period of twelve months commencing on the first day of January and ending on the thirty-first day of December in any given year.

"Gusii Region" means the geographic area comprising Kisii County and Nyamira County in southwestern Kenya, inhabited predominantly by the Abagusii people.

"Safeguarding" means the policies, procedures and practices that the organization adopts to protect the welfare, rights, and dignity of all beneficiaries, particularly vulnerable persons including the elderly, persons with disabilities, and children, from harm, abuse, neglect, or exploitation.

"Quorum" means the minimum number of persons required to be present at a meeting of any organ of the organization for the business of that meeting to be validly transacted.

"Simple Majority" means more than half of the votes cast by persons present and voting at a meeting at which a quorum is present.

"Special Majority" means not less than two-thirds of the votes cast by persons present and voting at a meeting at which a quorum is present.

"Resolution" means a decision formally proposed, seconded, and approved at a duly constituted meeting of the General Assembly or the Board of Trustees.

"Program" means any structured set of activities, outputs and outcomes designed and implemented by the organization in pursuit of its objects.

"In Writing" means communicated in any permanent legible form, including handwriting, printed document, or electronic communication capable of being read and retained.

"Food Basket" means the fortnightly food parcel provided by the organization to enrolled beneficiary households, comprising essential food commodities sufficient for basic household nutrition over a two-week period.

"Integrated Community Support Model" means the organizations' holistic program model addressing the four interconnected challenges of food insecurity, mobility barriers, caregiving gaps, and social isolation simultaneously, through coordinated service delivery at the household level.

2. In this Constitution, words in the masculine gender include the feminine and vice versa; words in the singular include the plural and vice versa; and references to a person include a natural person and a legal entity. Headings and chapter titles are for convenience only and do not affect the interpretation of any provision.

CHAPTER TWO: NAME, OBJECTS, VALUES AND IDENTITY

Article 2. Name and Legal Status

1. The organization shall be known as OBOMOCARE COMMUNITY BASED ORGANISATION, hereinafter referred to as the organization or by its abbreviated name OBOMOCARE CBO.
2. The organization shall be a body corporate, registered under the laws of Kenya, with perpetual succession, a common seal, and the capacity to:
 - (a) sue and be sued in its own name;
 - (b) enter into contracts;
 - (c) acquire, hold, and dispose of property both movable and immovable;
 - (d) open and operate bank accounts; and
 - (e) do all such other things as are lawfully incidental to the achievement of its objects.
3. The organization is a not-for-profit community-based organization. No part of its income, property or assets shall be paid to or distributed among any member, trustee or officer, except as reasonable remuneration for services actually rendered.
4. The common seal of the organization shall be kept in the custody of the Secretary and shall not be affixed to any document except upon a resolution of the Board of Trustees, authenticated by the signatures of the Chairperson and the Secretary.

Article 3. Motto, Tagline and Logo

1. The motto of the organization shall be: Care, Unity, Dignity.
2. The tagline of the organization shall be: Delivering Care.
3. The logo of the organization shall consist of an orange lotus flower with silhouettes of a diverse community including persons with disabilities, the name OBOMOCARE, and the words Community Based organization and Delivering Care. The logo shall be used only in official communications and materials of the organization. No person shall use the logo for any other purpose without the written authorization of the Board of Trustees.
4. The organizations' official colors shall be teal and orange, reflecting growth, compassion, and community warmth.

Article 4. Area of Operation

1. The primary area of operation of the organization shall be the Gusii Region, comprising Kisii County and Nyamira County in Kenya.
2. The registered office of the organization shall be situated within the Gusii Region, at an address determined by the Board of Trustees and notified to the registration authority.
3. The Board of Trustees may, by resolution, extend the area of operation to other parts of Kenya, provided that such extension is consistent with the objects of the organization and is notified to the relevant authorities.

Article 5. Objects of the organization

1. The objects for which the organization is established are as follows:
 - (a) To provide integrated community support to vulnerable households in the Gusii Region and beyond, including food support, transport facilitation, personal caregiving, and companionship, in order to improve household wellbeing, health outcomes and human dignity;
 - (b) To deliver personal care services to elderly persons, persons with disabilities, and chronically ill individuals who lack adequate caregiving support, including assistance with bathing, dressing, grooming, hygiene and other activities of daily living, in a manner that upholds and restores their dignity;
 - (c) To facilitate access to healthcare services for vulnerable persons by coordinating affordable boda boda transport to health facilities, supporting medication adherence, and working in partnership with Community Health Volunteers and county health structures;
 - (d) To address food insecurity among vulnerable households through the OBOMOCARE Food Basket program, partnerships with supermarkets, businesses, faith communities, and donors, and through promotion of household nutrition;
 - (e) To combat social isolation among elderly and chronically ill persons through structured companionship programs including regular household visits, conversation, games, storytelling and accompaniment to community events;
 - (f) To train, support and deploy community volunteer caregivers who deliver direct services to beneficiaries, and to equip those volunteers with skills, recognition, and appropriate support including a monthly support stipend;

- (g) To coordinate with Community Health Volunteers, county government health and social protection departments, boda boda associations, and other community structures to deliver holistic and dignified support to vulnerable households;
- (h) To generate, document and disseminate evidence of the organizations' Integrated Community Support Model and to advocate for its adoption and replication at ward, county, regional and national level;
- (i) To mobilize resources from local, national and international donors, partners and well-wishers in support of the organizations' programs; and
- (j) To do all such other things as are incidental or conducive to the attainment of the foregoing objects.

Article 6. Core Values

1. The organization shall be guided in all its activities by the following core values:
 - (a) Dignity: the organization affirms the inherent worth of every person and commits to delivering all services in a manner that upholds and restores the dignity of every beneficiary, volunteer and member;
 - (b) Compassion: the organization approaches every interaction with genuine care, empathy and warmth, treating every person served as a full human being worthy of time, attention and kindness;
 - (c) Community: the organization is of the community and for the community, drawing its strength from community trust, volunteer commitment and collective solidarity;
 - (d) Accountability: the organization is accountable to its beneficiaries, members, donors and the public for every resource it receives and every service it delivers;
 - (e) Integrity: the organization conducts all its affairs with honesty, transparency and the highest standards of ethical conduct, and rejects fraud, corruption, and abuse in all forms;
 - (f) Inclusion: the organization serves without discrimination on the basis of gender, age, disability, ethnicity, religion or social background, and prioritises the most marginalized; and
 - (g) Sustainability: the organization pursues a model of operation that is financially viable, institutionally strong, and capable of delivering services over the long term without dependence on any single source of support.

Article 7. Non-Partisan Character

1. The organization is a non-partisan community-based organisation. It shall not affiliate with, endorse, or enter into formal alliance with any registered political party.
2. Nothing in this Article shall prevent the organization from engaging with, petitioning, or publicly commenting on the conduct of any government institution, county authority or policy-making body in the exercise of its advocacy mandate in pursuit of its objects.

CHAPTER THREE: MEMBERSHIP

Article 8. Eligibility for Membership

1. Membership of the organization shall be open to any person who:
 - (a) is eighteen years of age or above;
 - (b) subscribes to the objects and values of the organization as set out in Articles 5 and 6;
and
 - (c) completes the registration process prescribed in Article 9.
2. The organization shall not discriminate in the grant of membership on the grounds of gender, ethnicity, religion, disability, region, socio-economic status, culture, language or political opinion.

Article 9. Registration of Members

1. A person wishing to become a member shall:
 - (a) complete and submit the prescribed Membership Registration Form to the Secretary or a designated field registrar;
 - (b) sign a Declaration of Commitment affirming acceptance of this Constitution and the values of the organization, in the form set out in the Second Schedule;
 - (c) pay the annual membership subscription fee as determined by the General Assembly, provided that no fee shall be set at a level that is prohibitive to persons of limited means; and
 - (d) have their registration approved by the Board of Trustees or a duly authorized officer.
2. Upon registration, a member shall be entered in the organizations' membership register, maintained by the Secretary, and issued with evidence of membership.
3. A person whose application is declined shall be notified in writing of the reason and shall have the right to appeal to the Board of Trustees within fourteen days.

Article 10. Rights of Members

1. Every member in good standing shall have the right to:
 - (a) attend, participate in and vote at meetings of the General Assembly;
 - (b) stand for election to any position in the organization, subject to the eligibility requirements set out in this Constitution;

- (c) access information about the organizations' activities, finances, and decisions;
- (d) raise concerns and petition any organ of the organization;
- (e) be heard before any adverse decision is made affecting their membership; and
- (f) receive equal treatment regardless of gender, ethnicity, religion, disability or social background.

Article 11. Duties of Members

1. Every member of the organization shall have the duty to:
 - (a) uphold, respect and abide by the provisions of this Constitution and all lawful decisions and resolutions of the organizations' organs;
 - (b) pay membership fees and any other approved contributions promptly;
 - (c) promote and defend the values, objects and reputation of the organization at all times;
 - (d) participate actively in the programs, activities and democratic processes of the organization; and
 - (e) refrain from any conduct or speech inconsistent with the principles and values of the organization or likely to bring it into disrepute.

Article 12. Suspension and Termination of Membership

1. Membership may be suspended or terminated only in accordance with the disciplinary procedures set out in Article 39 of this Constitution.
2. A member against whom disciplinary proceedings are commenced shall retain all membership rights, except the right to stand for election, until a final determination is made.
3. A member wishing to resign shall submit a written notice to the Secretary. Resignation shall take effect seven days after receipt of the notice.
4. A member who fails to pay the prescribed annual subscription fee for two consecutive years, despite a written reminder, shall cease to hold membership but may apply for re-registration under Article 9.

CHAPTER FOUR: ORGANS OF THE ORGANISATION

Article 13. Principal Organs

1. The principal organs of the organization, each separate in its mandate and powers, shall be:
 - (a) the General Assembly;
 - (b) the Board of Trustees;
 - (c) the Executive Committee;
 - (d) the Programmes Committee;
 - (e) the Finance and Audit Committee; and
 - (f) the Disciplinary Committee.

Article 14. Distribution and Limitation of Authority

1. The organization shall be governed in accordance with the principle that authority must be separated, balanced and exercised through distinct organs in order to promote accountability, prevent abuse of power and preserve democratic governance.
2. In furtherance of this principle:
 - (a) the General Assembly shall serve as the supreme deliberative, representative and policy-making organ of the organization and shall exercise oversight authority over all other organs;
 - (b) the Board of Trustees shall exercise strategic governance and oversight authority and shall be responsible for ensuring that the Executive Committee implements the decisions and policies of the General Assembly; and
 - (c) the Disciplinary Committee shall exercise independent and impartial authority in all disciplinary matters, free from interference by any other organ.
3. No organ shall assume, interfere with or exercise the powers and functions assigned to another organ under this Constitution, and any act or decision made outside the lawful mandate of an organ shall be null and void.

Article 15. Principle of Interdependence and Checks

1. While the principal organs shall remain separate in function, they shall be interdependent in the following respects:

- (a) the General Assembly shall have authority to review, ratify or reject major decisions of the Board of Trustees;
- (b) the Board of Trustees shall be collectively accountable to the General Assembly;
- (c) the Executive Committee shall be accountable to the Board of Trustees at every meeting;
- (d) the Disciplinary Committee shall have jurisdiction over all members and officials including members of the Executive Committee and the Board; and
- (e) the Secretary shall serve as the institutional memory of the organization, providing administrative support to all organs.

CHAPTER FIVE: THE GENERAL ASSEMBLY

Article 16. Establishment and Composition

1. There shall be a General Assembly of the organization, which shall be the supreme organ of the organization. Its decisions, made in accordance with this Constitution, shall be binding on all other organs and officials.
2. The General Assembly shall comprise all registered members of the organization in good standing.

Article 17. Powers of the General Assembly

1. The powers of the General Assembly shall include the following:
 - (a) to adopt, amend or repeal this Constitution in accordance with Article 52;
 - (b) to elect members of the Board of Trustees;
 - (c) to receive and approve annual reports, financial statements and audit reports;
 - (d) to determine membership subscription fees;
 - (e) to remove a trustee or officer from office on the grounds and by the procedure set out in this Constitution;
 - (f) to dissolve the organization in accordance with Article 53; and
 - (g) to make any other decision reserved to the General Assembly by this Constitution.

Article 18. Meetings of the General Assembly

1. The General Assembly shall hold an Annual General Meeting once in every financial year, within six months of the end of the financial year, at a date and venue determined by the Board of Trustees.
2. The Secretary shall give all members not less than twenty-one days written notice of any Annual General Meeting, setting out the agenda.
3. The Board of Trustees may convene an Extraordinary General Meeting at any time it considers necessary.
4. The Board of Trustees shall convene an Extraordinary General Meeting within thirty days of receiving a written request signed by not less than one-third of all members in good standing.
5. The quorum for any meeting of the General Assembly shall be not less than one-half of all members in good standing or thirty members, whichever is lower.

6. Every matter before the General Assembly shall be decided by simple majority, except for amendments to this Constitution and removal of trustees, which shall require a special majority.
7. Minutes of every General Assembly meeting shall be recorded by the Secretary and confirmed at the subsequent meeting.

CHAPTER SIX: BOARD OF TRUSTEES AND EXECUTIVE COMMITTEE

Article 19. Establishment of the Board of Trustees

1. There shall be a Board of Trustees, which shall be the governing body of the organization, responsible for strategic direction, oversight, financial accountability, and ensuring compliance with this Constitution.
2. The Board of Trustees shall exercise governance authority collectively. No individual trustee shall exercise authority unilaterally except as expressly provided in this Constitution.

Article 20. Composition of the Board of Trustees

1. The Board of Trustees shall comprise not fewer than five and not more than nine members, elected by the General Assembly.
2. The composition of the Board shall at all times reflect gender balance, with not more than two-thirds of trustees being of the same gender.
3. Trustees shall be elected for a term of three years and shall be eligible for re-election for one further consecutive term. After two consecutive terms, a trustee shall not be eligible for re-election until at least one full term has elapsed.
4. A person shall be eligible for election to the Board of Trustees only if they:
 - (a) are a registered member of the organization in good standing;
 - (b) are at least twenty-one years of age;
 - (c) have been a registered member for at least six months immediately preceding the date of nomination;
 - (d) have not been convicted of a criminal offence involving dishonesty, fraud or violence within the preceding ten years; and
 - (e) have not been found guilty of a disciplinary offence by the Disciplinary Committee within the preceding two years.

Article 21. Powers of the Board of Trustees

1. The powers of the Board of Trustees shall include the following:
 - (a) to implement and oversee the implementation of decisions of the General Assembly;
 - (b) to approve annual budgets, financial reports, and the appointment of auditors;

- (c) to approve organizational policies including safeguarding, anti-fraud, procurement, human resources and financial policies;
 - (d) to appoint and evaluate the Programme Director and senior staff;
 - (e) to fill any casual vacancy in the Board pending the next General Assembly election;
 - (f) to ensure that the organization operates within the law and in conformity with its registration obligations; and
 - (g) to oversee the management of all assets and property of the organization.
2. The Board of Trustees shall meet not fewer than four times in every financial year.
 3. The quorum for any meeting of the Board shall be a majority of all trustees. Decisions of the Board shall be made by simple majority. In the event of a tie, the Chairperson shall have a casting vote.

Article 22. The Executive Committee

1. There shall be an Executive Committee of the organization, responsible for the day-to-day management and administration of the organizations' affairs under the oversight of the Board of Trustees.
2. The Executive Committee shall consist of the following elected officers:
 - (a) Chairperson;
 - (b) Vice Chairperson;
 - (c) Secretary;
 - (d) Assistant Secretary;
 - (e) Treasurer;
 - (f) Assistant Treasurer;
 - (g) Programmes Officer;
 - (h) Volunteer Coordinator; and
 - (i) Community Liaison Officer.
3. Each officer of the Executive Committee shall be elected by the General Assembly for a term of two years, renewable for one further consecutive term only.
4. At least one-third of all positions in the Executive Committee shall at all times be occupied by persons of either gender. No person shall hold more than one elected position simultaneously.

Article 23. Qualifications for Executive Committee Office

1. A person shall be eligible for election to any Executive Committee position only if they:
 - (a) are a registered member of the organization in good standing;
 - (b) have been a registered member for at least six months immediately preceding the date of nomination;
 - (c) have not been convicted of a criminal offence involving dishonesty, fraud or violence within the preceding ten years; and
 - (d) have not been found guilty of a disciplinary offence by the Disciplinary Committee within the preceding two years.

Article 24. The Chairperson

1. The Chairperson shall be the principal representative and spokesperson of the organization. The Chairperson shall:
 - (a) represent the organization in dealings with government bodies, donors, media, civil society and other organisations;
 - (b) preside over all meetings of the General Assembly and the Board of Trustees and cast the deciding vote in the event of a tie;
 - (c) sign, jointly with the Secretary, all official correspondence and legally binding communications;
 - (d) present an annual report on the state of the organization to the Annual General Meeting; and
 - (e) carry out such other functions as may be conferred by the General Assembly or this Constitution.
2. The Chairperson shall not have the power to unilaterally make decisions within the collective mandate of the Board of Trustees or Executive Committee, or to authorise expenditure beyond the approved budget without Board approval.
3. In the absence of the Chairperson, the Vice Chairperson shall exercise the powers of the Chairperson.

Article 25. The Secretary

1. The Secretary shall be the chief administrative officer of the organization. The Secretary shall:

- (a) maintain the official records, minutes, correspondence and documentation of all organs of the organization;
 - (b) co-sign, jointly with the Chairperson, all official correspondence, contracts and legally binding communications;
 - (c) co-sign, jointly with the Treasurer, all financial instruments and payment authorisations;
 - (d) prepare the agenda for all meetings in consultation with the Chairperson;
 - (e) maintain the membership register and issue membership records; and
 - (f) take custody of the common seal of the organization and ensure its proper use.
2. No official communication, contract or financial instrument of the organization shall be valid without the signature of the Secretary, save where this Constitution expressly provides otherwise.

Article 26. The Treasurer

1. The Treasurer shall be the principal financial officer of the organization. The Treasurer shall:
- (a) maintain proper books of account of all income, expenditure, assets and liabilities;
 - (b) co-sign, jointly with the Secretary, all financial instruments and payment authorisations;
 - (c) prepare and present quarterly financial statements to the Board of Trustees;
 - (d) prepare annual budget estimates and submit them to the Board at least three months before the commencement of the financial year; and
 - (e) present audited financial accounts to the Annual General Meeting.

Article 27. The Programmes Officer

1. The Programmes Officer shall coordinate and monitor all service delivery programmes of the organization, including the four programme pillars of food support, transport facilitation, personal care and companionship. The Programmes Officer shall maintain programme records, liaise with Community Health Volunteer partners, and prepare quarterly programme reports for submission to the Board of Trustees.

Article 28. The Volunteer Coordinator

1. The Volunteer Coordinator shall recruit, train, deploy and support the organizations' volunteer caregiver corps. The Volunteer Coordinator shall maintain a register of all active volunteers, organize monthly volunteer support meetings and recognition activities, and prepare quarterly volunteer performance reports for submission to the Programmes Officer.

Article 29. The Community Liaison Officer

1. The Community Liaison Officer shall maintain the organizations' relationships with community structures, local partners, government offices and beneficiary communities. The Community Liaison Officer shall coordinate outreach and registration activities, maintain relationships with boda boda associations, supermarkets, churches and local businesses that partner with the organization, and receive and document feedback, concerns and complaints from beneficiaries and community members.

Article 30. Meetings of the Executive Committee

1. The Executive Committee shall meet at least once per month. The quorum for Executive Committee meetings shall be two-thirds of all members. Decisions shall be made by simple majority. In the event of a tie, the Chairperson shall have a casting vote.
2. All decisions shall be recorded in minutes certified by the Secretary and circulated to all members within seven days. Meetings may be held in person or via verified digital platforms, provided all members can participate simultaneously.

CHAPTER SEVEN: COMMITTEES OF THE ORGANISATION

Article 31. Programmes Committee

1. There shall be a Programmes Committee, which shall provide oversight and strategic guidance on the design, delivery and evaluation of all program. It shall comprise the Programmes Officer as convener, the Volunteer Coordinator, the Community Liaison Officer, the Program Director, and two other members appointed by the Board of Trustees. The Programmes Committee shall meet not fewer than four times per year and shall submit quarterly program oversight reports to the Board of Trustees.

Article 32. Finance and Audit Committee

1. There shall be a Finance and Audit Committee, which shall provide oversight of the organizations' financial management, internal controls and compliance with applicable financial law. It shall comprise the Treasurer as convener, the Assistant Treasurer, and two members of the Board of Trustees appointed by the Board. The Finance and Audit Committee shall review all financial statements before presentation to the Board of Trustees and shall present a financial oversight report to each Annual General Meeting.

Article 33. Disciplinary Committee

1. There shall be a Disciplinary Committee, which shall be an independent body responsible for hearing and determining disciplinary matters involving members and officials. The Disciplinary Committee shall consist of:
 - (a) a chairperson appointed by the Board of Trustees from among persons with knowledge of governance, law or community leadership;
 - (b) two members elected by the General Assembly; and
 - (c) one representative of the organizations' volunteer caregiver corps.
2. No member of the Executive Committee shall sit on the Disciplinary Committee. The Disciplinary Committee shall operate independently and no directive or resolution of any other organ shall direct or interfere with its proceedings.
3. The Disciplinary Committee shall have the power to summon any member or official to appear before it, require the production of documents, impose sanctions including a warning, suspension or recommendation of removal, and make interim orders pending the conclusion of proceedings. The quorum for proceedings shall be three members.

CHAPTER EIGHT: ELECTIONS, VACANCIES, IMPEACHMENT AND DISCIPLINE

Article 34. General Elections

1. General elections for all positions in the Executive Committee shall be held every two years at the Annual General Meeting or a Special General Meeting convened for that purpose.
2. The Board of Trustees shall constitute an Electoral Committee at least sixty days before each general election, comprising a Returning Officer appointed by the Board, two members elected by the General Assembly, and one representative from the volunteer caregiver corps.
3. No member of the Electoral Committee shall stand for election during the electoral cycle in which they serve. The Electoral Committee shall publish notice of elections at least forty-five days before the election date, receive and verify nomination papers, manage the campaign period, oversee and administer the elections, announce and certify results, and resolve electoral disputes at the first instance.

Article 35. Method of Election

1. All officers of the Executive Committee shall be elected by the General Assembly by a simple majority of votes cast, provided that at least one-half of eligible members are present and voting. Each member shall have one vote per position.
2. Where no candidate receives a majority on the first ballot, a run-off shall be conducted between the two candidates with the highest number of votes.

Article 36. Nomination Requirements

1. A candidate seeking election to any Executive Committee position shall submit a duly completed Nomination Form to the Electoral Committee within the prescribed period, be seconded by at least five registered members in good standing, satisfy the eligibility requirements set out in Article 23, and submit a signed declaration confirming acceptance of this Constitution in full.

Article 37. Vacancy of Office

1. An elected officer shall vacate their position if they:
 - (a) cease to be a registered member in good standing;

- (b) are absent from three consecutive Executive Committee meetings without written permission of the Chairperson;
 - (c) are convicted of a criminal offence and sentenced to imprisonment for a term exceeding six months;
 - (d) resign in writing; or
 - (e) are removed from office following the impeachment or disciplinary procedure set out in this Constitution.
2. Where a vacancy arises, a by-election shall be held within sixty days to fill the position. A person elected in a by-election shall serve only for the remainder of the unexpired term.

Article 38. Impeachment of Officers

1. Any elected officer of the Executive Committee may be impeached and removed from office on the following grounds: gross violation of this Constitution; willful failure to perform the duties of office; gross misconduct unbecoming of an officer; corruption, theft or misappropriation of the organizations' funds; conviction of a criminal offence involving dishonesty, fraud or violence; or sustained absence from duty without reasonable cause.
2. Impeachment proceedings against any officer other than the Chairperson shall be initiated by a written Notice signed by at least three members of the Executive Committee or five members of the Board of Trustees, lodged with the Secretary. Impeachment proceedings against the Chairperson shall be initiated by a Notice signed by at least two-thirds of all Executive Committee members.
3. Upon receipt of the Notice, the Secretary shall notify the subject and convene a special Board of Trustees meeting within seven days to determine whether to refer the matter to the Disciplinary Committee. The Disciplinary Committee shall conduct an inquiry and submit its findings to the Board of Trustees within thirty days. Removal from office shall require a special majority of the General Assembly.
4. Every officer subject to impeachment proceedings shall be entitled to written notice of the charges at least fourteen days before any hearing, to appear before the Disciplinary Committee and present their response, to be accompanied by a representative of their choice, and to appeal to the General Assembly within thirty days of the decision.

Article 39. Disciplinary Proceedings

1. Any member may lodge a formal complaint against any other member or officer with the Disciplinary Committee. Upon receipt of a complaint, the Disciplinary Committee shall acknowledge receipt within seven days, determine whether the complaint discloses a prima facie case, and where it does, notify the respondent and provide them with a copy of the complaint.
2. Every respondent shall be entitled to written notice of the charges at least fourteen days before any hearing, adequate time to prepare a response, the right to appear before the Committee in person, to be accompanied by a member of their choice, and to receive a written decision with reasons.
3. The Disciplinary Committee shall determine all complaints within forty-five days. Decisions of the Disciplinary Committee shall be final, save that a party aggrieved may appeal to the General Assembly within thirty days, and the General Assembly's decision shall be final.

Article 40. Disciplinary Offences and Sanctions

1. The following shall constitute disciplinary offences: gross misconduct unbecoming of a member; corruption, theft or misuse of the organizations' resources; willful violation of this Constitution or any lawful resolution; discrimination in organization activities; unauthorized use of the organizations' name, seal or logo; violence or incitement to violence; disclosure of confidential information about beneficiaries without authorization; and sabotage of the organizations' activities or organs.
2. Sanctions available to the Disciplinary Committee shall include a formal written warning, public censure, suspension from organization activities, disqualification from holding elected office for a defined period, recommendation of removal from office to be confirmed by the General Assembly, and expulsion from the organization. The Disciplinary Committee shall apply sanctions proportionately, having regard to the gravity of the offence and the respondent's history within the organization.

CHAPTER NINE: FINANCE, PROPERTY, PROGRAMMES AND GENERAL PROVISIONS

Article 41. Sources of Funds

1. The funds and assets of the organization may be derived from any or all of the following sources:
 - (a) annual membership subscription fees;
 - (b) grants, donations and contributions from local, national and international donors and well-wishers;
 - (c) in-kind contributions of goods, services or equipment from businesses, supermarkets, faith communities and individuals;
 - (d) proceeds from Harambee events and community fundraising activities;
 - (e) government grants and county government contributions;
 - (f) income from lawful activities undertaken in furtherance of the organizations' objects;
 - (g) interest earned on bank deposits; and
 - (h) any other lawful source approved by the Board of Trustees.
2. The organization shall not accept funds from any source that would compromise its independence, values or non-partisan character.

Article 42. Bank Accounts and Signatories

1. The organization shall maintain one or more bank accounts in its name with a reputable bank. All accounts shall require at least two authorized signatories, one of whom shall be the Treasurer or, in the Treasurer's absence, the Assistant Treasurer. No single signatory shall be authorized to operate any account alone, regardless of the amount.

Article 43. Financial Controls

1. All expenditure shall be authorized in accordance with a schedule of authorities approved by the Board of Trustees. No expenditure shall be incurred unless provided for in an approved budget or having received prior Board approval. All payments shall be supported by invoices, receipts or other evidence of purpose and legitimacy. The organization shall maintain proper books of account including a cashbook, ledger and asset register.

Article 44. Annual Budget

1. The Program Director shall, before the end of each financial year, prepare a draft budget for the following year and submit it to the Board of Trustees for approval. The Board shall approve the budget before the commencement of the financial year to which it relates. Any significant variation from the approved budget shall require Board approval before commitments are made.

Article 45. Audit

1. The accounts of the organization shall be audited annually by an independent qualified auditor appointed by the General Assembly. Audited accounts and the auditor's report shall be presented to the Annual General Meeting and made available to all members. The auditor shall have unrestricted access to all books, records and documents of the organization. The same auditor shall not be appointed for more than three consecutive financial years.

Article 46. Property and Assets

1. All property and assets of the organization shall be held in the name of the organization. No property or asset shall be sold, leased or otherwise disposed of without prior Board approval, or for assets above a threshold determined by the Board, General Assembly approval. A register of assets shall be maintained by the Secretary and updated whenever assets are acquired or disposed of.

Article 47. Anti-Fraud and Anti-Corruption

1. The organization shall adopt and maintain an Anti-Fraud and Anti-Corruption Policy setting out obligations of all persons and procedures for reporting and investigating suspected fraud or corruption. Any person who suspects fraud or corruption shall report that suspicion to the Chairperson or, if the Chairperson is implicated, to another member of the Board. All reports shall be investigated promptly and impartially. Any official who misappropriates organization funds shall be subject to disciplinary proceedings and shall be personally liable to the organization for the amount misappropriated.

Article 48. Core Program Pillars

1. The organization shall deliver services to beneficiaries through four integrated program pillars:

- (a) Food Support: the provision of the OBOMOCARE Food Basket on a fortnightly basis to enrolled beneficiary households, in partnership with local businesses, supermarkets, faith communities and donors, and support for meal preparation for elderly persons who cannot cook independently;
- (b) Transport Facilitation: the coordination of affordable transport through formal partnerships with boda boda associations in each target sub-county, to enable beneficiaries to attend health facilities, maintain medication regimens and access essential services;
- (c) Personal Care and Dignity: the delivery of personal care services to elderly persons, persons with disabilities and chronically ill individuals, including assistance with bathing, dressing, grooming, hygiene and activities of daily living, in a manner that upholds the dignity and self-respect of every beneficiary; and
- (d) Companionship and Social Inclusion: the provision of structured social engagement including regular visits, conversation, games, storytelling and accompaniment to community events, to combat isolation and loneliness experienced by vulnerable persons and to restore their participation in community life.

Article 49. Volunteer Caregiver Program

1. The organization shall recruit, train, deploy and support a corps of community volunteer caregivers responsible for delivering services to beneficiaries. Volunteer caregivers shall undergo a structured training program covering personal care techniques, safeguarding principles, basic health literacy, First Aid, CPR training, waste management, basic mental health support, documentation, and communication skills. Training shall be delivered in partnership with a qualified health training institution.
2. Volunteer caregivers shall be provided with appropriate support including supervision, tools and supplies, peer networks, a monthly support stipend, transport reimbursements, and a clear career pathway including the possibility of progressing to community health assistant roles within the county government system. The terms of engagement of volunteer caregivers shall be set out in a written agreement specifying their roles, responsibilities, rights and obligations.

Article 50. Safeguarding in Program Delivery

1. The organization shall adopt and maintain a Safeguarding Policy that protects all beneficiaries, particularly elderly persons, persons with disabilities and children, from abuse, neglect, exploitation or harm in the course of its activities. All trustees, staff and volunteers shall be required to comply with the Safeguarding Policy as a condition of their engagement. The organization shall designate a Safeguarding Officer responsible for receiving and acting on safeguarding concerns, and any person with reasonable cause to believe a beneficiary has been harmed or is at risk of harm shall report that concern to the Safeguarding Officer without delay.

Article 51. Monitoring, Evaluation and Learning

1. The organization shall maintain a monitoring and evaluation framework tracking program delivery, measuring beneficiary outcomes and generating evidence of impact. The Program Director shall prepare and present quarterly program reports to the Board of Trustees. An annual program evaluation shall be conducted, including a beneficiary feedback process, a midterm evaluation at month twelve of each program cycle, and an independent external evaluation at program close. The organization shall document and apply lessons learned to continuously improve its programs.

Article 52. Amendment of this Constitution

1. This Constitution is the property of the members of the organization and shall be amended only with their participation. Amendments may be proposed by the Board of Trustees by a unanimous resolution, or by a petition signed by at least one-third of all registered members in good standing.
2. A proposed amendment shall be published and circulated to all members at least twenty-eight days before the General Assembly meeting at which it is to be considered. An amendment shall be adopted only if approved by a special majority of the General Assembly. No amendment shall be made to the objects clause, the dissolution clause or the non-distribution clause without the prior approval of the registration authority.

Article 53. Dissolution

1. The organization may be dissolved only by a special majority of the General Assembly at a meeting convened specifically for that purpose, of which not less than twenty-eight days' notice has been given to all members. A motion for dissolution shall be published and circulated to all members at least sixty days before the dissolution meeting.

2. Upon dissolution, all outstanding liabilities shall first be settled from the Organisation's assets. Any remaining assets shall, after settlement of liabilities, be transferred to one or more organizations with similar objects registered in Kenya, as determined by the dissolution meeting. No remaining assets shall be distributed to individual members. The dissolution shall be registered with the relevant authority within fourteen days.

Article 54. Indemnity and Liability

1. Every trustee, officer, staff member and volunteer shall be indemnified out of the assets of the organization against any liability incurred in the exercise of their duties, provided they acted in good faith and in the honest belief that the action was in the best interests of the organization. No trustee, officer, staff member or volunteer shall be personally liable for any debt or obligation of the organization solely by reason of their position.

Article 55. Supremacy of this Constitution

1. This Constitution is the supreme governing instrument of OBOMOCARE Community Based organization. Any action, resolution, directive or agreement inconsistent with this Constitution shall be null and void to the extent of such inconsistency. Every officer, member, organ and agent of the organization is bound by and shall act in conformity with this Constitution.

Article 56. Saving and Transitional Provisions

1. This Constitution shall come into force upon adoption at the inaugural General Assembly. The inaugural elections shall be held within ninety days of the adoption of this Constitution. Until the inaugural elections are held, the organization shall be administered by an interim steering committee appointed by the founding members, pending constitution of the Executive Committee. All rights, obligations and activities of the organization existing prior to adoption of this Constitution shall continue in force insofar as they are consistent with it.

SCHEDULES

FIRST SCHEDULE

Record of Founding Members

Pursuant to Article 1 of this Constitution, the names of the founding members of OBOMOCARE Community Based organization, as recognised by the inaugural General Assembly, shall be inscribed herein upon adoption.

No.	Full Name	ID Number	Signature	Date
1				
2				
3				
4				
5				
6				
7				
8				
9				
10				

SECOND SCHEDULE

Declaration of Commitment

Form for use under Article 9(1)(b)

I, _____, having read and understood the Constitution of OBOMOCARE Community Based organization, do hereby solemnly declare that:

- (a) I subscribe to the objects and values of the organization as set out in Articles 5 and 6 of this Constitution;

- (b) I commit to abide by this Constitution and all lawful decisions of the organs of the organization;
- (c) I commit to promote the unity, values, dignity and objects of the organization at all times;
- (d) I undertake to conduct myself in a manner consistent with the organizations' guiding principles; and
- (e) I understand that violation of this Declaration may result in disciplinary action under Chapter 8 of this Constitution.

Signed: _____ Date: _____

Witnessed by: _____ Position: _____

THIRD SCHEDULE

Declaration of Adoption

We, the founding members of OBOMOCARE Community Based organization, having assembled in a General Assembly on the date set out below, hereby declare that we have read, understood and do hereby adopt this Constitution as the supreme governing instrument of the organization.

Place of Adoption: _____

Date of Adoption: _____

Chairperson		Secretary	
Full	Name:	Full	Name:
_____		_____	
ID	Number:	ID	Number:
_____		_____	
Signature:		Signature:	
_____		_____	
Date:		Date:	
_____		_____	

FOURTH SCHEDULE*Register of Officers*

Position	Full Name	Contact	Date Elected
Chairperson			
Vice Chairperson			
Secretary			
Assistant Secretary			
Treasurer			
Assistant Treasurer			
Programmes Officer			
Volunteer Coordinator			
Community Liaison Officer			